

Pradeep Kumar Jaiswal v. State of U.P. & Another

High Court of Judicature at Allahabad · Division Bench · 20 November 2009 · WRIT - C No. - 61211 of 2009 · **Writ dismissed; bill dispute relegated to clause 6.5.**

HEADNOTE

A writ whose only grievance is a disputed electricity-bill amount is not entertained. Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies an alternative remedy before the competent authority; the petition is dismissed on that ground.

FACTUAL SUMMARY

Pradeep Kumar Jaiswal filed Writ-C No. 61211 of 2009 in the Allahabad High Court against the State of Uttar Pradesh and another, seeking interference with an electricity bill whose amount he disputed. Counsel for the petitioner and for the respondents, including the standing counsel, were heard. The record does not describe the tariff period, the licensee's identity beyond the State respondents, or any disconnection or theft allegation. The petitioner asked the Court to examine the bill in writ jurisdiction rather than before the Supply Code authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — alternative remedy

HOLDING

A consumer who only disputes the amount of an electricity bill has an alternative remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the competent authority; a writ petition raising that dispute is dismissed on the ground of alternative remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL AMOUNT

Writ dismissed solely for alternative remedy; the bill was not examined on merits. ¶ 1